

Id.

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

In the instant matter, though there are allegations directed toward Azizi and A to Z, the sole cause of action is not directed at either of them. The theory under which Plaintiff seeks relief from these two defendants is wholly unclear. Is it negligence? Fraud? Both? And when did the alleged conduct occur? Was it the same year in which Plaintiff sought the general contractor services of defendants?

This uncertainty puts Defendants Azizi and A to Z at a disadvantage. Under which legal theory must they prepare a defense?

The Demurrer as to these two Defendants will be sustained.

The court will grant Plaintiff leave to amend.

Disposition

Defendants’ Demurrer to the sole count in the Complaint is sustained.

Plaintiff to file amended Complaint within 10 days of the written notification of this Order.

Defendant to file Order and serve copy of filed Order on Plaintiff.

14. 9:00 AM CASE NUMBER: MSL19-06700

CASE NAME: AUTOVEST VS. ATAM

***HEARING ON MOTION IN RE: NTC AND MTN TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT**

FILED BY: ATAM, IRENE

***TENTATIVE RULING**

Defendant has filed a Motion to set aside a default judgment, but has not provided notice to the Plaintiff.

Disposition

This Motion will be continued to 10/13/26.

Defendant shall provide notice of the Motion and of the hearing to Plaintiff.

15. 9:00 AM CASE NUMBER: N26-0893
CASE NAME: VLADIMIR KALACHEVSKIY VS. UNITED STATES POSTAL SERVICE
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KALACHEVSKIY, VLADIMIR
***TENTATIVE RULING**

Plaintiff has filed a Petition to confirm an arbitration award. But there is no evidence that Plaintiff provided any notice to the Defendant/Respondent.

Disposition

This Petition will be continued to 10/13/26.

Petitioner to provide notice to Defendant/Respondent.